

**IN THE UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION**

Debra Nelson,

Plaintiff,

vs.

Curtiss Wright Electro Mechanical Corp.,
d/b/a Curtiss-Wright Steam and Air
Solutions, *et al.*

Defendant.

C.A. No. 2:25-405-RMG

ORDER

This matter comes before the Court on Plaintiff's motion to recuse the undersigned based upon an alleged "unmistakable appearance of bias and partiality." (Dkt. No. 236). For reasons set forth below, the motion is denied.

Factual Background

Plaintiff filed this action in state court, and it was removed by Defendants to this Court on January 21, 2025. The complaint alleges violations of Title VII of the 1964 Civil Rights Act and 42 U.S.C. § 1981. (Dkt. No. 1-1). The matter was initially assigned to United States District Judge David Norton and was referred routinely to a magistrate judge for pretrial handling. On October 7, 2025, this matter was administratively transferred to the undersigned, a common occurrence in this District. The Court had no involvement in or knowledge about the transfer of the case onto its docket.

The Court received information from the Clerk of the Fourth Circuit on November 24, 2025, that Plaintiff had complained that she had submitted objections to two discovery orders of a magistrate judge on November 6, 2025, and that those objections had not been filed on this Court's

docket. A copy of Plaintiff's objections was provided by the Fourth Circuit Clerk. This was the first instance the undersigned was aware of the Plaintiff's objections to the two discovery orders of the magistrate judge. The Court promptly filed Plaintiff's objections on the Court's docket and entered a text order allowing responses to Plaintiff's objections.

Plaintiff filed the present motion to recuse on December 2, 2025, alleging that since the "unexplained" judicial assignment of October 7, 2025, she had observed a pattern of "irregular rulings, missing filings, contradictory orders . . . and clear judicial acceptance of defense counsel's false statements" and that this had created "an unmistakable appearance of bias and partiality." (Dkt. No. 236 at 1). Plaintiff asserted that the Clerk's Office oversight in not filing her objections on November 6, 2025, was "not a clerical mistake" but a procedural failure that deprived Plaintiff of the ability to obtain a timely review under Rule 72(a). Plaintiff contends that this Court's alleged "pattern of partiality, hostility, and procedural irregularities" requires this Court's recusal from any further involvement in her case. (*Id.* at 3-4, 15).

Legal Standard

28 U.S.C. § 455(a) provides that a judge "shall disqualify himself in any proceeding in which his impartiality might reasonably be questioned." This is an objective standard based on a "reasonable, well-informed observer who assesses all the facts and circumstances." *United States v. DeTemple*, 162 F.3d 279, 286 (4th Cir. 1998). The basis of the disqualification must come from an "extrajudicial source," and "judicial rulings alone almost never constitute a valid basis for a bias or partiality motion." *Liteky v. United States*, 510 U.S. 540, 554-55 (1994). If a party is unhappy with a judge's rulings, her proper path is to file an appeal. *Id.* at 555. As the Fifth Circuit stated in *United States v. Gordon*, 61 F.3d 263, 268 (5th Cir. 1995), "litigants many not make the

trial judge into an issue because they dislike the court's approach or because they disagree with the ultimate outcome of their case."

Discussion

Plaintiff is pursuing this matter pro se and it is likely that she is unfamiliar with the Court's administrative processes. She has taken the routine reassignment of a case from one district judge's docket to another district judge's docket, and an administrative oversight in the Clerk's office regarding the filing of objections and concluded that they collectively reflect a judicial hostility toward her and her case. Nothing could be further from the truth.¹

This Court had no involvement in or knowledge about this matter until alerted by the Clerk of the Fourth Circuit on November 24, 2025, that Plaintiff had complained that her November 6, 2025, objections to two magistrate judge's discovery orders had not been filed on the docket. The Court promptly directed the Clerk to file Plaintiff's objections and entered its first order in the case, directing parties who wished to respond to the objections to do so within fourteen days, with Plaintiff's reply due within seven days. (Dkt. No. 222). Since then, the Court has received a response to Plaintiff's objections and entered an order ruling on Plaintiff's objections. (Dkt. Nos. 244, 262). The Court is aware of no prejudice Plaintiff has suffered from the brief delay in the filing of her objections on the Court's docket.

Based on these facts, the Court finds that no reasonable, well-informed observer who assessed all of the facts and circumstances of this case would conclude that the undersigned's

¹ Since this case was removed to federal court, Plaintiff has filed 38 motions and submitted three amended complaints. The docket now runs to 263 entries. While it would be ideal for the Clerk's office to never make a filing error, the huge volume of Plaintiff's filings increases the likelihood that, from time to time, errors will be made.

impartiality might reasonably be questioned. Consequently, the Court denies Plaintiff's motion to recuse. (Dkt. No. 236).

AND IT IS SO ORDERED.

s/ Richard Mark Gergel
Richard Mark Gergel
United States District Judge

December 23, 2025
Charleston, South Carolina